

Court No. - 29

Case :- WRIT - C No. - 584 of 2021

Petitioner :- Surya Trauma Centre And Hospital

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd And 4 Others

Counsel for Petitioner :- Ranjit Saxena,Om Prakash Mishra

Counsel for Respondent :- Narendra Kumar Tiwari,Amit Krishna,C.S.C.

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

As prayed on behalf of the petitioner, list on 03.02.2021 as fresh.

Order Date :- 1.2.2021

Amit Mishra

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Counsel for Petitioner :- Ranjit Saxena, Om Prakash Mishra

Counsel for Respondent :- Narendra Kumar Tiwari, Amit Krishna, C.S.C.

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Heard Sri Ranjit Saxena for the petitioner; learned Standing Counsel, Sri Amit Krishna and Ms. Usha for the respondents.

The present petition has been filed, *inter alia*, for the following reliefs:

i) issue a writ, order or direction in the nature of certiorari quashing the impugned bills dated 11.9.2020 Connection No. SRO5000010015 (Annexure no. 4 of the writ petition) and the impugned notice of disconnection of electricity supply dated 02.12.2020 (Annexure No. 17 of writ petition) and notice of disconnection dated 28.12.2020 (Annexure No. 19 of the writ petition).

The petitioner is raising dispute with regard to the correctness of the bill raised against him. It is open for the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

The writ petition is **disposed of** with direction that in the event petitioner approaches the appropriate authority for redressal of his grievance and deposits the amount to the tune of 33 % of total dues within 10 days from today, his application may be considered and decided by the said authority by reasoned and speaking order, in accordance with law, as expeditiously as possible, preferably within a month from the date of receipt of this order after giving opportunity of hearing to the petitioner.

Till disposal of the application, no coercive action shall be

taken against the petitioner.

However, in the event of the default on the part of the petitioner, this order shall automatically cease to have any effect without further reference to the Court.

Order Date :- 3.2.2021

Rahul Dwivedi/-

Court No. - 29

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd And 4 Others

Counsel for Petitioner :- Ranjit Saxena,Om Prakash Mishra

Counsel for Respondent :- Narendra Kumar Tiwari,Amit Krishna,C.S.C.,Usha Kiran

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

(Order on Time Extension Application)

Heard.

Application is supported by an affidavit.

Cause shown is sufficient.

The application is allowed.

Two weeks and no more time is granted to the petitioners to comply the order dated 3.2.2021 which shall be computed from today failing which the protection granted under this order shall automatically cease to have any effect without further reference to the Court.

Learned counsel for the petitioner is directed to communicate this order in writing to learned counsel for power corporation within three days.

Order Date :- 3.3.2021

Rahul Dwivedi/-